

Daya Shanker v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 February 2016 · Writ-C No. 5549 of 2016 · **Writ dismissed; liberty to avail Clause 6.5(b) remedy**

HEADNOTE

A consumer who disputes an entire electricity bill as excessive, including charges for a period of disconnection, must first invoke the statutory bill-dispute remedy under Clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005. The High Court will not examine the correctness of the bill in the first instance.

FACTUAL SUMMARY

The petitioner, Daya Shanker, claimed that he had been given an electricity connection under the Union Government's Kutir Jyoti Programme for persons below the poverty line. He challenged a bill raised by the Executive Engineer of Madhyanchal Vidyut Vitran Nigam Limited, Budaun, as highly excessive and as covering even a period of disconnection. He thereby disputed the entire bill. Counsel for the distribution company pointed to the statutory alternative remedy under Clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

excessive-bill-dispute

HOLDING

Where the consumer disputes the entire bill as excessive, including charges for a period of disconnection, Clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005 furnishes a statutory alternative remedy, and the writ court will not in the first instance examine the correctness of the bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE IMPUGNED BILL, INCLUDING CHARGES FOR THE DISCONNECTION PERIOD

Left to the statutory forum under Clause 6.5(b) ¶ 1